

Smt. Sudha Chandra Vanshi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 23 September 2022 · Writ-C No. 25550 of 2022 · Writ-C No. 25550 of 2022 · **Writ disposed; Clause 6.5 objection to Executive Engineer directed.**

HEADNOTE

On a writ over electricity dues, the Allahabad High Court held that the petitioner's remedy is to file an objection before the Executive Engineer under paragraph 6.5 of the Electricity Supply Code, 2005. The writ was disposed of with a direction to file that objection within two weeks; if filed in time, the Executive Engineer must decide all points of objection expeditiously, preferably within four weeks of receipt, in accordance with law.

FACTUAL SUMMARY

Smt. Sudha Chandra Vanshi filed Writ-C No. 25550 of 2022 in the Allahabad High Court against the State of Uttar Pradesh and others, including the Electricity Department as respondent no. 3, over electricity dues. Counsel for the petitioner and for the Department were heard. The order records no connection number, demand amount, or prior representation. The Court did not examine the merits of the dues and disposed of the writ on 23 September 2022 by sending the petitioner to the statutory objection forum.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

billing-dispute-executive-engineer

HOLDING

A consumer disputing electricity dues must approach the Executive Engineer by filing an objection under paragraph 6.5 of the Electricity Supply Code, 2005. The High Court will not decide the dues on a writ. If the objection is filed within two weeks of the order, the Executive Engineer is obliged to decide all points of objection expeditiously, preferably within four weeks of receipt, in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ on electricity dues disposed without merits examination; petitioner directed to file a Clause 6.5 objection before the Executive Engineer. ¶ 1

clause-6.5-representation-executive-engineer The Court identified the Executive Engineer as the forum for the petitioner's paragraph 6.5 objection and fixed two weeks to file and four weeks for decision. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS AND QUANTUM OF THE ELECTRICITY DUES

The Court did not examine the demand or any billing objection on merits. ¶ 1